



Asylum Research & Global Assistance

To:

The President of the European Court of Human Rights

Council of Europe

67075 Strasbourg Cedex

France

Urgent request for interim measures under Rule 39 of the Rules of Court

Dmitrii LAGOVSKII v. Serbia – imminent extradition to the Russian Federation in violation of Article 3 of the Convention (risk of torture, inhuman or degrading treatment and forced mobilisation)

1. Applicant and representative

Applicant:

Mr Dmitrii LAGOVSKII, born on the 7th March, 1975, national of the Russian Federation, currently residing in the Republic of Serbia.

Representative:

The applicant is represented by the NGO *Asylum Research & Global Assistance (ARGA)*, France (registration No. 923 389 936), acting through its President, Mr Sergei Khrabrykh, and by local counsel in Serbia (Ms Sanja RADIVOJEVIĆ, attorney-at-law, and Mr Marko ŠTAMBUK, attorney-at-law). All correspondence may be sent to: [full postal and email address of representative].

2. Contracting State concerned

The Contracting State concerned is the Republic of Serbia, which has authorised the extradition of the applicant to the Russian Federation and may proceed to surrender him at any moment.

3. Subject of the request

The applicant respectfully asks the Court to indicate an interim measure under Rule 39, requesting the Republic of Serbia not to extradite or otherwise remove him to the Russian Federation pending the Court's examination of his complaints under the Convention, in particular under Article 3 (and, in substance, Articles 6 and 13). The risk complained of is real, immediate and irreversible: if extradited, the applicant faces a serious danger of torture or inhuman or degrading treatment in

Russian places of detention, as well as a specific risk of forced mobilisation and punishment for refusal to take part in the war against Ukraine, which is directly linked to his Ukrainian origin and military background.

4. Relevant domestic proceedings and their outcome

1. On the basis of a request from the Prosecutor General's Office of the Russian Federation of 23 January 2025, the Serbian authorities opened extradition proceedings against the applicant, who is wanted in Russia for alleged large-scale fraud (Article 159 § 4 of the Russian Criminal Code).
2. On 8 April 2025 the applicant was arrested in Serbia on the basis of an INTERPOL diffusion / Red Notice and placed in extradition detention for 21 days, until 29 April 2025. During this period he was subjected to psychological pressure and his health deteriorated.
3. By a decision of the High Court in Belgrade of 4 July 2025, the court found that the legal conditions for the applicant's extradition to the Russian Federation were met and declared the extradition admissible.
4. The applicant lodged an appeal, arguing, *inter alia*, that:
 - there was no sufficient factual basis or "reasonable suspicion" that he had committed any offence;
 - the Russian case file was vague, internally inconsistent and very poorly translated, making it impossible to understand the alleged facts;
 - the prosecution was rooted in a corporate dispute and his professional legal activity;
 - his extradition would expose him, as a person of Ukrainian origin with military education and service in the Russian army, to forced mobilisation and ill-treatment, in violation of Article 3 ECHR and the principle of *non-refoulement*.
5. On 14 November 2025 the Court of Appeal in Belgrade (case no. Kž-Po1-Kre 37/25) dismissed the appeals and upheld the High Court's decision.

The Court of Appeal:

- accepted, without analysis, the Government's statement that all conditions for extradition were met;
 - did not assess the risk under Article 3 ECHR in any meaningful way: it briefly mentioned the applicant's arguments about the war and human rights violations in Russia, but then simply held that these arguments "do not lead to a different conclusion" because the offence is not political or military, and because the applicant has Russian nationality;
 - stated that the first-instance court had given "clear and convincing reasons" for its decision, but did not reproduce, examine or verify any such reasons;
 - treated the quality and contradictions of the Russian documentation as irrelevant, merely referring to the formal existence of a request for legal assistance and annexed documents.
6. The above appellate decision is final and enforceable. There is no ordinary remedy with automatic suspensive effect against it. A constitutional complaint is being prepared, but it does not suspend the execution of the extradition order in practice and cannot neutralise the immediate risk of removal.

Given the final appellate decision and the absence of an effective suspensive remedy, the applicant may now be extradited to Russia at any moment.

5. Facts of the case and nature of the charges

The criminal case in Russia stems from a corporate conflict around the company AO “FEZ” and the sale of a land plot. The applicant worked as an external legal consultant / individual entrepreneur, but in the Russian documents he is falsely described as an “engineer” of the company.

Key elements:

- Several arbitral courts in the Russian Federation, including the Supreme Court, confirmed the legality of the land transaction, the absence of any damage to AO “FEZ” and the compliance with corporate procedures.
- The criminal proceedings were initiated at the insistence of a minority shareholder (Mr Palkin), who had no legal power to represent the company as a victim. The declaration of the company and the shareholder as “victims” was carried out by the investigator without a proper complaint from the company itself.
- The Russian case file does not contain specific facts indicating what exactly the applicant did, when, where and how. The time period of the alleged offence is vaguely defined as “not later than 3 December 2021 until the end of January 2022”.
- Many passages of the Russian documentation are semantically unclear, grammatically incorrect or contradictory, due to extremely poor translation. It is impossible to reconstruct a coherent factual narrative proving any fraudulent scheme.
- The accusations are largely based on innocuous internal correspondence of the valuation company (requests to provide “real market value”, thanks for sending a PDF report, etc.) and on unrelated correspondence with other clients months later.

In substance, the applicant is being prosecuted not for any genuine criminal conduct, but for his professional legal support of a lawful transaction in a corporate dispute. The criminal case is used as a tool of pressure in a private commercial conflict, not as a means of protecting public order.

6. Individual risk upon extradition – Article 3 ECHR

The risk to the applicant is individual, concrete and very serious, for several converging reasons:

(a) Ukrainian origin and risk of forced mobilisation

- The applicant was born and educated in Ukraine, where his family still lives. He clearly stated before the Serbian courts that, although he holds Russian nationality, he is Ukrainian by origin and cannot morally participate in a war against the Ukrainian people.
- He graduated from a military-related faculty (radio-electronics) and previously served in the Russian army in positions connected with radio-electronics. Because of this background, he fears that, if returned, he would be immediately mobilised and sent to the front.
- The applicant submitted reports and legal analyses describing documented practices of forced mobilisation, coercion and abuse by the Russian authorities, including specific risks for persons of Ukrainian origin. Refusal to participate in hostilities may lead to severe punishment, ill-treatment or torture.

This combination of Ukrainian origin + military education + prior service + current war context creates a particularly high and personal risk of ill-treatment that goes far beyond the general situation in Russia.

(b) Risk of torture and inhuman treatment in detention

- Numerous reports by international organisations (Human Rights Watch, Amnesty International, the Committee against Torture, UN Special Rapporteurs) document systematic torture, inhuman detention conditions and lack of effective investigations in the Russian Federation, especially in pre-trial detention centres and penal colonies, and particularly in cases with political or economic background.
- The applicant's case is linked to a corporate conflict and his defence of corporate interests as a lawyer / legal consultant. There is a well-documented pattern of using criminal proceedings against lawyers, human rights defenders and businesspeople to exert pressure, accompanied by coercion to confess and ill-treatment.
- The applicant has already experienced psychological pressure and deterioration of health during his 21-day extradition detention in Serbia. There is every reason to believe that his treatment in Russian custody – where safeguards are much weaker – will be significantly worse.

(c) Real risk of a flagrant denial of justice

- The criminal case was initiated without a mandatory complaint from the company AO “FEZ”, in violation of Russian law.
- The applicant was never properly notified of the charges, the travel ban or subsequent measures. A measure of restraint (“undertaking not to leave”) was later cancelled as unlawful, yet shortly afterwards a detention order in absentia and international search were issued on the basis of inconsistent data.
- The Russian authorities ignored numerous complaints filed by the applicant and his lawyers to the Investigative Committee, the Prosecutor's Office and courts. No effective review of the legality and credibility of the charges has taken place.
- There is thus a real risk of a criminal process devoid of basic guarantees, which, in combination with the above-mentioned ill-treatment risks, reaches the threshold of a flagrant denial of justice under Article 6, reinforcing the Article 3 risk.

7. Failure of the Serbian courts to assess the Article 3 risk

Both levels of jurisdiction in Serbia failed to carry out the rigorous and independent assessment required by Article 3:

- The High Court relied mechanically on the existence of the Russian request and a few formal documents, without examining their quality or factual content, and without assessing the applicant's detailed submissions on the risk of ill-treatment, forced mobilisation and the corporate nature of the conflict.
- The Court of Appeal, in its decision of 14 November 2025, did not engage at all with the substance of the Article 3 arguments. It simply stated that the applicant has Russian nationality and is accused of an ordinary (non-political) fraud offence, and that “all conditions for extradition are fulfilled”.
- The appellate court did not examine reports on the human rights situation in Russia, the specific risks for persons of Ukrainian origin, or the applicant's individual situation. It did not request any assurances or additional information from Russia.
- The court also failed to examine whether there exists a minimum factual basis (“reasonable suspicion”) in the Russian file, despite the defence pointing to the absence of concrete facts, contradictions and poor translation. Instead, the court merely referred to the first-instance reasoning and the Russian request, without reproducing or analysing them.

As a result, the Serbian courts did not discharge their positive obligations under Article 3 to assess, of their own motion, the real risk of ill-treatment and to avoid exposing the applicant to such risk.

8. Other international procedures

- A detailed complaint has been submitted to the Commission for the Control of INTERPOL's Files (CCF), requesting access to data, deletion of any Red Notices and suspension of data processing, on the grounds that the case violates Article 3 of the INTERPOL Constitution (private corporate dispute, abuse of criminal law and lack of evidence).
- A complaint has also been lodged with UN human-rights bodies, stressing the risks of torture, unfair trial and forced mobilisation in case of return to Russia.

These procedures, however, do not have suspensive effect on the ongoing extradition process in Serbia and cannot prevent the applicant's removal in the short term.

9. Complaints before the Court

The applicant intends to lodge a full application before the Court, invoking in particular:

- Article 3 – on account of the real risk of torture, inhuman or degrading treatment, including forced mobilisation and punishment for refusal to participate in hostilities, if extradited to Russia;
- Article 6 – risk of a flagrant denial of justice in view of the blatant procedural defects, lack of evidence, manipulation of his status and corporate nature of the conflict;
- Article 13 – absence of an effective remedy with automatic suspensive effect in Serbia against the extradition decision.

10. Interim measure requested under Rule 39

In light of the above, the applicant respectfully requests the Court to indicate to the Republic of Serbia, under Rule 39, that:

1. The applicant shall not be extradited, removed or otherwise transferred to the Russian Federation pending the Court's examination of his complaints under the Convention;
2. The Government of Serbia shall inform the Court in advance of any planned steps towards the applicant's removal and provide all relevant documentation concerning the extradition process.

The requested measure is necessary to prevent immediate, serious and irreversible harm to the applicant's life, physical integrity and human dignity, in accordance with the Court's established practice under Article 3 ECHR.

5th December, 2025, Bayonne, France

A handwritten signature in black ink, consisting of stylized, cursive letters that appear to be 'JH'.